

such decree has been made, does not come in under some of the provisions in these orders contained, all future proceedings as to such defendant may be ex parte, unless where notice is by these orders specially provided or shall be directed by the Court. But, where the decree is not absolute under Order XXXVIII., and has not been made absolute under Order XLII., and a defendant has a case upon the merits not appearing in the bill, he may apply to the Court by petition, stating such case and submitting to such terms with respect to costs and otherwise as the Court may think reasonable, for leave to answer the bill; and the Court, being satisfied that such case is proper to be submitted to the judgment of the Court, may, if it thinks fit, and upon such terms as seem just, vacate the enrolment (if any) of the decree, and permit such defendant to answer the bill; and, if permission be given to such defendant to answer the bill, leave may be given to file a separate replication to such answer, and issue may be joined and witnesses examined, and such proceedings had as if the decree had not been made, and no proceeding against such defendant had been had in the cause.

The rights and liabilities of any plaintiff or defendant under a decree made upon a bill taken *pro confesso* extend to the representatives of any deceased plaintiff or defendant, and to any person or persons claiming under any person who was plaintiff or defendant at the time when the decree was pronounced; and with reference to the altered state of parties and any new interests acquired, the Court may, upon motion served in such manner, and supported by such evidence as under the circumstances of the case the Court deems sufficient, permit any party, or the representatives of any party, to adopt such proceedings as the nature and circumstances of the case require, for the purpose of having the decree (if absolute) duly executed, or for the purpose of having the matter of the decree and the right of the parties duly ascertained and determined.

The above Orders from 35 to 44 inclusive are copied mutatis mutandis from the English Orders of 1845, from 81 to 92 inclusive, excepting the 88th English Order which is not adopted, and excepting that the part above italicised in the 42nd Order is not in the English Orders. And instead of the time, two years, provided in the 3rd Article of the 41st Order, the English Order gives three years. The English 88th Order of 1845, which is not

When decree not yet made absolute, how defendant may obtain a hearing.

XLIV.
How decree *pro confesso*, affects representatives.